

U.P. Joint Block Development Officer (Non-Gazetted) Service Rules, 1992

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State of Uttar Pradesh - Act

U.P. Joint Block Development Officer (Non-Gazetted) Service Rules, 1992

UTTAR PRADESH

India

U.P. Joint Block Development Officer (Non-Gazetted) Service Rules, 1992

Rule U-P-JOINT-BLOCK-DEVELOPMENT-OFFICER-NON-GAZETTED-SERVICE-RULES-1992 of 1992

Published on 26 February 1992

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U.P. Joint Block Development Officer (Non-Gazetted) Service Rules, 1992

Published vide Notification No. 9542/38-1-30-M-90, dated 26th February, 1992

In exercise of the powers conferred by the proviso to Article 309 of the Constitution and in supersession of all existing rules and orders on the subject, the Governor is pleased to make the following rules regulating recruitment and conditions of service of persons appointed to the Uttar Pradesh Joint Block Development Officer (Non-Gazetted) Service

:

Part I ? General

1.

Short title and commencement.

(1)

These rules may be called The Uttar Pradesh Joint Block Development Officer (Non-Gazetted) Service Rules, 1992.

(2)

They shall come into force at once.

2.

Status of the service.

- The Uttar Pradesh Joint Block Development Officer (Non-Gazetted) Service comprises Group 'C' posts.

3.

Definitions.

- In these rules unless there is anything repugnant in the subject or context,-

(a)

"Appointing authority" means the Commissioner, Rural Development, Uttar Pradesh;

(b)

"Citizen of India" means a person who is or is deemed to be a citizen of India under Part II of the Constitution;

(c)

"Constitution" means the Constitution of India;

(d)

"Government" means the State Government of Uttar Pradesh;

(e)

"Governor" means the Governor of Uttar Pradesh;

(f)

"Member of the Service" means a person substantively appointed under these rules or the rules or orders in force prior to the commencement of the rules to a post in the cadre of the Service;

(g)

"Service" means the Uttar Pradesh Joint Block Development Officer (Non-Gazetted) Service;

(h)

"Substantive appointment" means an appointment not being an ad hoc appointment, on a post in the cadre of the Service, made after selection in accordance with the rules and, if there were no rules, in accordance with the procedure prescribed for the time being, by executive instructions issued by the Government;

(i)

"Year of recruitment" means the period of twelve months commencing from the first day of July of a calendar year.

Part II ? Cadre

4.

Cadre of Service.

(1)

The strength of the Service shall be such as may be determined by the Government from time to time.

(2)

The strength of the Service shall until orders varying the same are passed under sub-rule (1), be as given in Appendix :
Provided that-

(1)

the appointing authority may leave unfilled or the Governor may hold in abeyance any vacant post, without thereby entitling any person to compensation;

(2)

the Governor may create such additional permanent or temporary posts as he may consider proper.

Part III ? Recruitment

5.

Source of recruitment.

- Recruitment to the post of Joint Block Development Officer shall be made by promotion from amongst such substantively appointed Assistant Development Officer of the Rural Development Department, Uttar Pradesh, who have completed seven years of service, as such, on the first day of the year of recruitment:

Provided that if sufficient number of suitable eligible persons are not available for promotion, the requisite length of

Service may be relaxed by the Government.

6.

Reservation.

- Reservation for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories shall be in accordance with the order of the Government in force at the time of the recruitment.

Part IV ? Procedure For Recruitment

7.

Determination of vacancies.

- The appointing authority shall determine the number of vacancies to be filled during the course of the year as also the number of vacancies to be reserved for candidates belonging to Scheduled Castes, Scheduled Tribes and other categories under Rule 6.

8.

Procedure for recruitment by promotion.

(1)

Recruitment by promotion to the post of Joint Block Development Officer shall be made on the basis of seniority subject to the rejection of unfit.

(2)

For the purpose of recruitment, there shall be constituted a Selection Committee comprising:

1.

Commissioner, Rural Development, Uttar Pradesh

...

Chairman

2.

Additional Commissioner, Rural Development, Uttar Pradesh.

...

Member

3.

Deputy Commissioner (Administration) at the Headquarters of the Office of the Commissioner, Rural Development, Uttar Pradesh

....

Member

(3)

The appointing authority shall prepare the eligibility lists of the candidates in accordance with the Uttar Pradesh Promotion By Selection (on Posts Outside Purview of the Public Service Commission) Eligibility List Rules, 1986, and place it before the Selection Committee along with their character rolls and such other record, pertaining to them, as may be considered proper.

(4)

The Selection Committee shall consider the cases of the candidates on the basis of records, referred to in sub-rule (3), and, if it considers necessary, it may interview the candidates also.

(5)

The Selection Committee shall prepare lists of selected candidates, arranged in order of seniority and forward the same to the appointing authority.

Part V ? Appointment, Probation, Confirmation and Seniority

9.

Appointment.

(1)

The appointing authority shall make appointment by taking the names of candidates in the order in which they stand in the lists prepared under Rule 3.

(2)

If more than one orders of appointment are issued in respect of any one selection, a combined order shall also be issued, mentioning the names of the persons in order of seniority as it stood in the cadre from which they are promoted.

10.

Probation.

(1)

A person substantively appointed to a post in the Service shall be placed on probation for a period of two years.

(2)

The appointing authority may, for reasons to be recorded, extend the period of probation in individual cases specifying the date up to which the extension is granted:

Provided that, save in exceptional circumstances, the period of probation shall not be extended beyond one year and in no circumstance beyond two years.

(3)

If it appears to the appointing authority at any time during or at the end of the period of probation for extended period of probation that, a probationer has not made sufficient use of his opportunities or has otherwise failed to give satisfaction, he may be reverted to his substantive post.

(4)

A probationer who is reverted under sub-rule (3) shall not be entitled to any compensation.

(5)

The appointing authority may allow continuous service, rendered in a post included in the cadre or any other equivalent or higher post to be taken into account for the purpose of computing the period of probation.

11.

Confirmation.

- The order issued by the appointing authority under sub-rule (3) of Rule 5 of the Uttar Pradesh State Government Servants Confirmation Rules, 1991, declaring that the probationer has successfully completed the probation shall be deemed to be the order of confirmation.

12.

Seniority.

- The seniority of persons substantively appointed to the posts shall be determined in accordance with the Uttar Pradesh Government Servants Seniority Rules, 1991, as amended from time to time.

Part VI ? Pay Etc.

13.

Scale of pay.

- The scales of pay admissible to persons appointed to posts in the Service, shall be such as may be determined by the Government from time to time.

(2)

The scales of [pay]

[See now Revised Pay Scale.]

at the time of the commencement of these rules are as given below :

Name of post

Scale of pay

Joint Block Development Officer

Rs. 1400-40-1600-50-2300 E.B.-60-2600.

14.

Pay during probation.

(1)

Notwithstanding any provision in Fundamental Rules, to the contrary, a person on probation, if he is not already in permanent Government service, shall be allowed his first increment in the time scale when he has completed one year of satisfactory Service and second increment after two years service when he has completed the probationary period and is also confirmed :

Provided that if the period of probation is extended on account of failure to give satisfaction such extension shall not count for increment unless the appointing authority directs otherwise.

(2)

The pay during probation of a person who was already holding a post under the Government, shall be regulated by the

relevant Fundamental Rules :

Provided that if the period of probation is extended on account of failure to give satisfaction, such extension shall not count for increment unless the appointing authority directs otherwise.

(3)

The pay during probation of a person already in permanent Government service shall be regulated by the relevant rules, applicable generally to Government servants serving in connection with the affairs of the State.

15.

Criteria for crossing efficiency bar.

- No person shall be allowed to cross efficiency bar unless his work and conduct are found to be satisfactory and unless his integrity is certified.

Part VII ? Other Provisions

16.

Canvassing.

- No recommendations, either written or oral, other than those required under the rules applicable to the post will be taken into consideration. Any attempt on the part of a candidate to enlist support directly or indirectly for his candidature will disqualify him for appointment.

17.

Regulation of other matters.

- In regard to the matters not specifically covered by these rules or special orders, persons appointed to the Service shall be governed by the rules, regulations and orders applicable generally to Government servants serving in connection with the affairs of the State.

18.

Relaxation in the conditions of Service.

- Where the State Government is satisfied that the operation of any rule regulating the conditions of Service of persons, appointed to the Service cause undue hardship in any particular case it may notwithstanding anything contained in the rules applicable to the case, by order, dispense with or relax the requirements of that rule to such extent and subject to such conditions as it may consider necessary for dealing with the case in a just and equitable manner.

19.

Savings.

- Nothing in these rules affect reservations and other concession required to be provided for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other special categories of persons in accordance with the orders of the Government issued from time to time in this regard.

Appendix

[See Rule 4 (2)]

Serial No.

Name of post

Number of posts

Permanent

Temporary

Total

1.

Joint Block Development Officer

...

276

276

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